



CHAPTER xcii.

*An Act for incorporating and conferring powers on the Whitwell and District Gas Company. [31st July 1914.] A.D. 1914.

WHEREAS the Whitwell and District Gas Company Limited (in this Act called "the Limited Company") were in the year one thousand nine hundred and twelve incorporated under the Companies (Consolidation) Act 1908 for the purpose of supplying gas within the parish of Whitwell in the county of Derby and the adjacent neighbourhood and district:

And whereas the nominal capital of the Limited Company consists of ten thousand pounds divided into ten thousand shares of one pound each of which seven thousand seven hundred shares have been subscribed and are fully paid:

And whereas the Limited Company have not borrowed any money on mortgage of their undertaking:

And whereas the Limited Company acquired the lands described in the schedule to this Act and erected gasworks thereon and are now supplying gas within part of the limits of supply defined by this Act:

And whereas the demand for gas in the district supplied by the Limited Company has increased and is increasing and other parishes and places adjacent thereto are wholly without a supply of gas:

And whereas it is expedient that the Limited Company be dissolved and re-incorporated with further powers and that the Company so re-incorporated should be authorised to improve and extend their works and to extend their mains and to supply gas within the limits defined by this Act and that additional capital should be provided for such purposes:

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And whereas the Shireoaks Colliery Company Limited and the Kiveton Park Coal Company Limited are respectively supplying gas within parts of the limits of supply defined by this Act and it would be of public and local advantage if the gasworks and plant of those companies respectively were vested in the Company incorporated by this Act:

And whereas it is expedient that provision should be made as contained in this Act with reference to such vesting:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the Whitwell and District Gas Act 1914.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital);

Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every “such contract entered into by the Company shall be alike “in terms and amount under like circumstances to all “consumers” were added at the end of that section Provided also that the Gasworks Clauses Act 1871 shall be

read as if the words or portions of sections hereinafter mentioned were omitted from that Act (namely):— A.D. 1914.

(A) In section 12 from the words “with respect to its illuminating power” down to the words “and such gas shall”;

(B) In section 28 the words “for testing the illuminating power of the gas supplied” and the words “illuminating power and”;

(c) In section 36 the words “of less illuminating power”;

and as if the words “calorific power” were inserted in section 33 after the words “illuminating power”; and

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement).

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And— Interpretation.

The expression “the Company” means the Whitwell and District Gas Company incorporated by this Act;

The expression “the undertaking” means the gas undertaking by this Act authorised;

The expression “British thermal units” means British thermal units gross per cubic foot of gas.

RE-INCORPORATION.

4. On the passing of this Act the Limited Company shall be dissolved and the several persons who immediately before the passing of this Act were members of that Company and all other persons who have already subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a Company for the purposes hereinafter mentioned and shall be and are hereby re-incorporated by the name of “The Whitwell and District Gas Company” and by that name shall be a body corporate with perpetual succession and a common seal and Re-incorporation of Company.

A.D. 1914. with power to purchase take hold and dispose of lands and other property for the purposes of this Act and of their undertaking.

General
purposes of
Company.

5. The Company shall be established for the purpose of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of supply as defined by this Act and may convert manufacture and sell all residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company.

Present pro-
perty of
Limited
Company
vested in
Company.

6. Subject to the provisions of this Act all the lands gas-works erections buildings rights and easements which immediately before the passing of this Act were vested in the Limited Company or any person in trust for them or to which the Limited Company were in anywise entitled and all plant mains pipes retorts meters gas-stoves and fires gas-fittings lamp-columns and brackets syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the passing of this Act were the property of the Limited Company and all moneys and securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the Limited Company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the Limited Company and immediately before the passing of this Act in force shall as from the passing of this Act be and the same are hereby transferred to and vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the Limited Company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued renewed dealt with and disposed of by the Company as they think fit.

Memoran-
dum and
articles of
association
of Limited
Company to
be void.

7. Subject to the provisions of this Act the memorandum and articles of association of the Limited Company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the Limited Company and the members thereof as such but nothing in this Act contained shall release or discharge

any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the Limited Company if this Act had not been passed. A.D. 1914.

8. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the Limited Company or the members thereof as such shall be as valid as if the Company had not been incorporated and the memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the Limited Company and the members thereof as such and the property of the Limited Company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act. Saving of
existing
rights and
liabilities.

9. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the Limited Company or any trustees or persons acting on behalf of the Limited Company or by to or with any other person to whose rights and liabilities they have succeeded and at the passing of this Act in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the Limited Company or the trustees or persons acting on behalf of the Limited Company the Company had been a party thereto. Contracts
prior to Act
to be bind-
ing.

A.D. 1914.

Actions &c.
not to abate.

10. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the Limited Company or any member thereof in relation to the affairs of the Limited Company or to which the Limited Company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the Limited Company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the Limited Company and its members respectively.

Indemnity.

11. Every person who (being authorised so to do) before the passing of this Act entered into any bond covenant contract or engagement on behalf of the Limited Company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur to be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to
satisfy lia-
bilities of
Limited
Company.

12. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the Limited Company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the Limited Company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

13. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the Limited Company shall be payable to and may be collected and recovered by the Company in like manner as if they were due or accruing to the Company.

As to pay-
ment of
debts owing
before pass-
ing of Act.

14. All persons who immediately before the passing of this Act owed any money to the Limited Company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all

debts and moneys which immediately before the passing of this Act were due or recoverable from the Limited Company or for the payment of which the Limited Company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

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15. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) and all sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the Limited Company shall remain in full force and continue and be available in all respects as if such memorandum and articles had not been avoided.

Certificates
&c. to re-
main in
force.

16. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Books &c.
continued
evidence.

17. All officers and servants of the Limited Company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Officers to
continue
until re-
moved.

18. The books kept by the Limited Company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and shall be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

Present
registers of
members to
be continued.

CAPITAL.

19. The capital of the Company shall be twenty-two thousand seven hundred pounds whereof the sum of seven thousand seven hundred pounds divided into seven thousand seven hundred shares of one pound each is in this Act called "the original capital" and the sum of fifteen thousand pounds

Capital.

A.D. 1914. — is in this Act called “the additional capital” and shall be raised in manner hereinafter mentioned.

Vesting of capital.

20.—(1) The original capital shall be appropriated to and vested in the several persons who immediately before the passing of this Act were registered members of the Limited Company and shall be distributed between such persons in proportion to their respective holdings in and in substitution for their shares in the Limited Company.

(2) All shares so vested shall be deemed to be fully paid up and shall be held with the same rights and on the same trusts and shall be subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities as immediately before the passing of this Act affected the share or shares as the case may be for which the same are substituted and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting the same and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the shares substituted therefor and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any share or shares are hereby expressly authorised and required to accept any shares vested in them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with such share or shares in the capital of the Limited Company and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act.

Certificates of shares to be called in and others issued.

21.—(1) The Company shall call in the existing certificates of shares in the Limited Company and issue in exchange for those certificates to the respective proprietors thereof free of charge certificates for the shares to which those proprietors are by this Act respectively entitled.

(2) No shareholder of the Limited Company shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require.

(3) If any holder of shares in the capital of the Limited Company neglects or omits to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book of the Limited Company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the shares substituted under the provisions of this Act for the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

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(4) On the issue of any certificate of shares in the Company the certificate or certificates for which it is substituted shall be cancelled.

22. All transfers or other dispositions of shares in the capital of the Limited Company shall after the substitution therefor of shares in the Company and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of new shares which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such shares shall be held to apply to the nominal amount of new shares issued in substitution for such shares under the provisions of this Act.

Transfers of shares although by present name to be valid.

23. The Company may raise additional capital not exceeding in the whole (except as is by this Act specially provided) fifteen thousand pounds by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or other of those modes but the Company shall not issue any share of less nominal value than one pound Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fifteen thousand

Power to raise additional capital.

A.D. 1914. pounds Provided also that the Company shall not raise by the
— issue of preference shares or stock a greater amount of such
additional capital than eight thousand pounds.

New shares
or stock to
be sold by
auction or
tender.

24.—(1) All shares or stock created under the powers of the section of this Act of which the marginal note is "Power to raise additional capital" shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of each district council whose district or any portion of whose district is within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively. A.D. 1914.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

25. Except as is otherwise by this Act provided the additional capital created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their shares or stock and be subject to the like provisions and liabilities as the holders of shares of the same class issued in substitution for existing shares under this Act. Privileges &c. of holders of additional capital.

BORROWING POWERS.

26. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the capital of the Company which at the time of borrowing has been created or raised under the powers of this Act but no sum Power to borrow.

A.D. 1914. — shall be borrowed in respect of any capital so created or raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premiums (if any) realised on the sale thereof has been fully paid up.

Arrears to be enforced by appointment of a receiver.

27. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

Debenture stock.

28. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages over other debts.

29. All moneys raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided that this priority shall not affect any claim against the Company or their property in respect of any rentcharge which may be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Application of moneys.

30. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly

applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend. A.D. 1914.

LIMITATION OF PROFITS &C.

31. Except as is by this Act provided the profits of the Company to be divided among the holders of shares or stock in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say) On the original capital the rate of ten pounds in respect of every one hundred pounds of such capital and on the additional capital to be raised under the powers of this Act the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of six pounds per centum per annum in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital. Profits of Company limited.

32. In case in any year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the authorised rates on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in the dividend of each such class. Dividends on different classes of shares or stock to be paid proportionately.

33. The directors may in any year without calling a meeting of holders of shares or stock for the purpose declare and pay an interim half-yearly dividend out of the then ascertained profits of the Company Provided that no such interim dividend shall exceed one half of the amount of the authorised rate of dividend. Interim dividend.

34. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of transfer books previous to declaring interim dividend.

A.D. 1914.

RESERVE AND SPECIAL PURPOSES FUNDS.

Power to
create re-
serve fund.

35. When in any year the dividends of the Company on the ordinary capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Limited Company existing at the passing of this Act may be invested in any securities in which trustees are authorised by law to invest money or in such other securities as shall be authorised by a resolution of the Company other than the debentures or stocks of the Company and the dividends and interest arising from such securities shall be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividends in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividends at the authorised rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Power to
create a spe-
cial purposes
fund.

36.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

- (A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or
- (B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount

equal to one-tenth part of the paid-up capital of the Company A.D. 1914.
including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

37. If the clear profits of the undertaking in any year (after appropriating and setting apart such sum or sums (if any) as may be determined upon under the powers of this Act to any fund or funds thereby authorised) amount to a larger sum than is sufficient to pay the dividends on the preference capital and the dividends at the authorised rates on the ordinary capital of the Company the excess shall be carried to the credit of the profit and loss (net revenue) account of the undertaking for the next following year: Application of excess of profits.

Provided that the sum standing to the credit of such profit and loss (net revenue) account to be carried forward to the next following year shall not at any time exceed the amount required to pay one year's dividends at the authorised rates on the preference and ordinary capital of the Company.

MEETINGS.

38. The first ordinary meeting of the Company shall be held within six months after the passing of this Act at the Company's principal office or at such other place as the directors shall appoint and all subsequent ordinary meetings of the Company shall be held in the month of February or March in every year at the Company's principal office or at such other place and at such other time as shall be appointed for that purpose by an order of the directors. Ordinary meetings.

39. The quorum for general meetings (whether ordinary or extraordinary) of the Company shall be five shareholders present in person or by proxy holding in the aggregate not less than one-tenth of the paid-up capital of the Company. Quorum of general meetings.

A.D. 1914.

Scale of
voting.

40. Every holder of ordinary shares or stock shall be entitled to one vote for every ordinary share or one pound of stock held by him.

Votes in
respect of
preference
shares or
stock.

41. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock to which a preferential dividend shall be assigned.

DIRECTORS AND AUDITORS.

Number of
directors.

42. The number of directors shall be four but the Company may vary the number provided that the number be not at any time more than seven or less than three.

Qualification
of directors.

43.—(1) The qualification of a director shall be the possession in his own right of shares or stock of the Company to the nominal amount of not less than two hundred pounds.

(2) If any of the directors shall be made bankrupt or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for six months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

Quorum of
directors.

44. The quorum of a meeting of directors shall be two.

Notice of
candidature
for office of
director.

45. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election.

First and
subsequent
directors.

46. Henry Ellison Fred Ellison David Hannan Thornton and Francis Everard Leyland Walker shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the holders of shares or stock present in person or by

proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the places of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the ordinary meeting to be held in every year (after the first ordinary meeting held after the passing of this Act) the holders of shares or stock present in person or by proxy shall (subject to the provisions hereinbefore contained allowing variation in the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead. A.D. 1914.

47.—(1) The directors may appoint any one of their body to be a managing director of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place. As to appointment of managing director.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

48. The prescribed number of auditors shall be one but the number may be increased to two by a resolution of the Company passed at a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant approved by the Board of Trade and need not hold shares or stock in the Company. Auditors.

A.D. 1914.

WORKS AND LANDS &C.

Power to
purchase
lands by
agreement.

49. The Company may for the purposes of the undertaking purchase take and hold by agreement but not otherwise in addition to the land described in the schedule to this Act any lands and hereditaments not exceeding in the whole three acres which they may require for the purposes of their works and the undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the land described in the schedule to this Act.

Persons
under dis-
ability may
grant ease-
ments &c.

50. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
sell and lease
lands.

51. The Company may subject to the provisions of the Lands Clauses Consolidation Act 1845 sell or let on lease for such periods as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of the undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands so let and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

Construction
and main-
tenance of
gasworks &c.

52. Subject to the provisions of this Act the Company may upon the land described in the schedule to this Act erect maintain alter improve extend and renew the existing gas and other works of the Limited Company and may on the said land or any part thereof erect maintain alter improve extend and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may on the said land convert and manufacture residual products resulting from the manufacture of gas.

53. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

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Power to
utilise pipes
for ancillary
purposes.

54. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act Provided that nothing in this section contained shall apply to any street or road belonging to and forming the approach to any station or depôt of the Midland Railway Company or of the Great Central Railway Company nor shall the Company in carrying out any works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street or road.

Power to
lay pipes in
private
streets.

55.—(1) The Company may subject to the approval of the Board of Trade purchase the gasworks and plant (so far as the same respectively are situate within the limits of supply) of the Shireoaks Colliery Company Limited and of the Kiveton Park Coal Company Limited or either of them (each of which companies is in this section included in the expression "the selling company") for such price or consideration and upon such terms and conditions as may be agreed upon between the selling company and the Company and upon completion of the purchase the gasworks and plant of the selling company shall be vested in and for all purposes form part of the undertaking of the Company.

Power to
purchase
undertakings
of other
companies.

(2) The Company may apply any moneys in their hands or moneys which they are authorised to raise by way of additional capital or by borrowing under or by virtue of this Act in or towards the payment of the price or consideration for the purchase of the gasworks and plant of the selling company or may with the approval of the Board of Trade raise by the

A.D. 1914. — creation and issue of ordinary shares or stock or preference shares or stock such further capital (in addition to the additional capital which the Company are authorised to raise under the powers of this Act) as may be necessary for the purpose of paying the said price or consideration and such price or consideration may if the selling company and the Company so agree be discharged wholly or partly by the allocation to the shareholders of the selling company of any shares or stock in the capital of the Company which the Company may be authorised to create and issue under this section.

(3) Any shares or stock so created in pursuance of the provisions of this section other than shares or stock allocated to the shareholders of the selling company shall be issued in accordance with the provisions of the section of this Act of which the marginal note is "New shares or stock to be sold by auction or tender."

(4) Any shares or stock so created and issued in pursuance of the provisions of this section and allocated to the shareholders of the selling company shall be deemed to be fully paid up.

(5) All shares or stock so created and issued in pursuance of the provisions of this section shall form part of the ordinary shares or stock or the preference shares or stock (as the case may be) in the additional capital which the Company are authorised to raise under the powers of this Act.

For protec-
tion of rail-
way com-
panies.

56. In executing and maintaining the works authorised by this Act where the same will cross over or under or otherwise affect any railway or any part of the works or property of the Midland Railway Company the Great Central Railway Company or of the Great Central and Midland Joint Committee (each of which is hereinafter referred to as "the railway company") the Company shall (except so far as it may be otherwise agreed in writing between the railway company and the Company) be subject to the following conditions:—

(1) All such works shall be executed and maintained under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the railway company and (except in case of emergency) according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this

section Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Company of his objections thereto he shall be deemed to have approved thereof:

- (2) If within fourteen days after the receipt of any such plans and drawings the railway company give to the Company notice that they themselves desire to execute any part of the work (other than the actual lying down of the mains which shall be done by the Company) which will cross over or under any railway or work belonging to them the railway company may themselves execute such part of the work to the reasonable satisfaction and under the superintendence of the Company and may recover the reasonable costs thereof from the Company:
- (3) All works which the Company may execute under this section shall be so constructed as to cause as little injury as may be to the railways works and property of the railway company and so as to cause no interruption to the passage or conduct of traffic over the same and if in the execution or maintenance of such works any injury be caused to the said railways works and property or any interruption be caused to the traffic the Company shall make full compensation to the railway company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as hereinafter provided:
- (4) The Company shall repay to the railway company the reasonable expense of any watching which may be necessary to provide for the protection of any railway of the railway company or the traffic thereon during the carrying out of the works aforesaid:
- (5) Any additional expense which the railway company may reasonably and properly incur in maintaining their railway bridges and works by reason of the existence of any mains or pipes of the Company laid under the powers of this Act across over or under such bridges or works shall be paid by the Company:
- (6) Any dispute or difference which may arise between the railway company and the Company with reference

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to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the railway company or the Company and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of West Riding County Council.

57. The following provisions for the protection of the county council of the west riding of Yorkshire (in this section called "the county council") shall have effect unless otherwise agreed upon in writing between the county council and the Company (that is to say):—

- (1) The Company shall not lay any mains pipes or works on any county or main road bridge without the consent of the county council but such consent shall not be unreasonably withheld:
- (2) The Company shall submit to the surveyor of the county council a plan and section showing the manner in which they propose to construct or lay any mains pipes or works over such bridge or the stream crossed thereby. If the said surveyor has any objection thereto he shall give notice thereof to the Company within twenty-one days after the receipt by him of such plan and section and in default of any such notice or in the case of emergency the Company may proceed to execute the proposed work in the manner shown upon the said plan and section:
- (3) Any difference that may arise between the Company and the county council as to whether such consent as aforesaid is unreasonably withheld or as to the said plan and section shall be determined by an arbitrator as hereinafter provided:
- (4) Notwithstanding anything in this Act contained it shall be lawful for the county council at any time or times to remove alter widen or renew any county or main road bridge or the approaches thereto on alongside or near to which any mains pipes or works of the Company are constructed laid or carried in the same manner as they might have removed altered widened

or renewed any such bridge or the approaches thereto if this Act had not been passed and such mains pipes or works had not been constructed laid or carried on over alongside or near to such bridge without making any compensation to the Company for any expense or loss to which they may be put in consequence of such removal alteration widening or renewal and in the event of any such bridge or the approaches thereto on alongside or near to which such mains pipes or works are constructed laid or carried being removed altered widened or renewed as aforesaid the Company shall at their own expense within such reasonable time as the said surveyor may prescribe remove or alter the position of their said mains pipes or works and replace the same in such position as the said surveyor shall reasonably approve Provided that before and during such removal alteration widening or renewal of any such bridge or approaches as aforesaid the county council shall afford reasonable facilities for temporarily carrying such mains or pipes so as not to interrupt the continuous supply of gas:

- (5) Notwithstanding anything in this Act contained if any difference arises between the Company and the county council touching this section or anything to be done or not to be done thereunder such difference shall be settled by arbitration by an arbitrator to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties in difference and subject thereto in accordance with the provisions of the Arbitration Act 1889.

58. In executing the works and exercising the powers by this Act authorised so far as they affect any main road or any county or main road bridge or the approaches thereto in the county of Derby vested in the county council of the administrative county of Derby (in this section called "the county council") the following provisions for the protection of the county council shall (unless otherwise agreed) apply and have effect (that is to say):—

For protec-
tion of
Derbyshire
County
Council.

- (1) All mains or pipes to be laid in or along any main road or in upon or across any county or main road

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bridge shall where reasonably practicable be laid in such a position in any such road or at the side thereof and if under the metalled portion thereof at such depth as the county council shall by writing under the hand of their surveyor (hereinafter referred to as "the county surveyor") reasonably direct:

- (2) The surplus paving metalling or materials removed during the laying of any mains pipes or other works to be laid as aforesaid shall not be placed on the metalled portion of the road without the written consent of the county surveyor and subject to such conditions (other than a payment of money) and directions as he may reasonably require or give and all surplus paving metalling or materials removed during the laying of any such mains pipes or works and not required by the Company for the purpose of reinstating and making good the road or county or main road bridge may be used by the county council for the maintenance and repair of any main or other road in the county:
- (3) The notice required by section 8 of the Gasworks Clauses Act 1847 shall (except for the laying connecting or repairing of consumers' service pipes as to which three days' notice shall be given) be not less than seven days instead of not less than three days:
- (4) Nothing in this Act contained shall authorise the Company to interfere with the structural part of any county or main road bridge without the consent in writing of the county surveyor which consent shall not be unreasonably withheld:
- (5) Nothing in this Act contained shall interfere with the right of the county council to alter the level of or deviate or improve any main road or to remove alter widen or reconstruct any county or main road bridge or approach in over or along which any mains pipes or works of the Company shall have been laid in the same manner as they might have altered deviated improved widened or reconstructed such road bridge or approach if this Act had not been passed and in the event of any such alteration deviation improvement removal widening or reconstruction being intended by the county council the Company shall with all

convenient speed on receiving ten days' notice (or shorter in cases of emergency) in writing under the hand of the county surveyor so to do alter the position of any such mains pipes or works in such manner and to such extent as such notice may reasonably prescribe and replace the same to his satisfaction Provided that the county council shall afford all reasonable facilities to the Company for such alteration and for temporarily carrying or supporting such mains pipes or works along such road or across or under the stream so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains pipes or works Provided also that all expense incurred by the Company under this subsection shall be repaid to them by the county council except so far as such expense shall be incurred consequent upon the removal alteration widening or reconstruction of any county or main road bridge or approach :

- (6) All works of the Company so far as they affect any main road or county or main road bridge shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto and the Company shall not open or break up at any one time a greater continuous length than two hundred yards of the metalled portion of any main road nor more than one hundred yards where there is only sufficient room for one cart to pass nor in the latter case shall such openings or breakings up be carried out without leaving where reasonably practicable a clear space of one hundred yards between consecutive openings or breakings up unless with the consent of the county surveyor which consent shall not be unreasonably withheld Provided always that where reasonably practicable at least twelve feet of metalled road shall be kept clear for the use of the public :

- (7) The Company shall repay to the county council all reasonable and additional expenses necessarily incurred

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or paid by the county council in the repair and reinstatement of so much of any main road or of the road over any county bridge or the approaches thereto in which the mains or pipes of the Company are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said mains or pipes :

- (8) All expenses payable by the Company to the county council or by the county council to the Company under the provisions of this section shall be recoverable as a debt due from the Company to the county council or from the county council to the Company as the case may be :
- (9) If any difference arises between the county council and the Company touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by arbitration by an engineer to be agreed upon between the county council and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to any such arbitration.

SUPPLY PRICE AND TESTING OF GAS.

Limits for
supply of
gas.

59.—(1) The limits within which the Company may supply gas under this Act (in this Act called “the limits of supply”) shall be the parishes townships or places of Whitwell Elmton (otherwise Elmton-with-Creswell) and Clown in the county of Derby and of Harthill and Woodhall Thorpe Salvin Todwick and Wales in the west riding of the county of York.

(2) Provided that the Company shall not supply gas within that part of the limits of supply which is at present supplied by the Kiveton Park Coal Company Limited and is coloured green on the map signed in triplicate by the Right Honourable Lord Haversham Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred unless and until they shall have acquired the gasworks and plant of the Kiveton Park Coal Company Limited within that part of the limits of supply Provided also that the Company shall not

supply gas within so much of the parish of Clown as is coloured pink on another map signed in triplicate by the Right Honourable Lord Haversham unless and until they have acquired the gasworks and plant of the Shireoaks Colliery Company Limited within the area shown on such map. A.D. 1914.

(3) One copy of each of the before-mentioned maps has been deposited in the Parliament Office of the House of Lords one copy in the Private Bill Office of the House of Commons and one copy at the office of the Company.

60.—(1) The price to be charged by the Company for gas supplied by them by ordinary meter shall be four shillings per one thousand cubic feet and such price is in this Act referred to as “the standard price”: Dividend dependent on price charged.

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividends payable by the Company on the ordinary capital as follows:—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividends payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rates of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

In respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rates of dividend by five shillings upon every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

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(2) If in any year the dividends payable on the ordinary shares or stock shall comprise a fractional amount less than one half per centum the directors may in their discretion add such fractional amount to the reserve fund or may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with such succeeding dividends accordingly or add the same to the reserve fund.

Testing-
place.

61. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing-place shall be a testing-place which shall be provided by the Company within three months after the passing of this Act on the land described in the schedule to this Act.

Company to
provide
apparatus
for testing
calorific
power.

62. Within three months after the passing of this Act the Company shall provide and maintain at the prescribed testing-place apparatus for testing the calorific power of the gas supplied by them and such apparatus shall consist of a calorimeter to be agreed upon between the Company and the local authority or failing agreement to be approved by the Board of Trade which shall be most suitable for ascertaining the total heat value of the gas expressed in British thermal units.

Standard
calorific
power.

63. The calorific power of the gas supplied by the Company shall when tested and corrected in accordance with the provisions hereinafter contained be five hundred and forty British thermal units and that power is hereinafter referred to as "the standard calorific power."

Provisions as
to testing
for calorific
power.

64. The following provisions shall apply with respect to the testing for calorific power of the gas supplied by the Company:—

(1) The gas examiner may by means of the calorimeter test at the prescribed testing-place at any reasonable hour the calorific power of the gas supplied by the Company but not more than one testing for calorific power shall be made at the testing-place on any day except in the event mentioned in subsection (7) of this section:

(2) The Company may if they think fit on each occasion of the testing of gas under the provisions of this section be represented by some officer who shall not interfere in the testing:

(3) The calorimeter shall be so used as to yield the total heat value of the gas which shall be developed by the complete combustion in moist (saturated) air of moist (saturated) gas and the products of combustion shall be cooled down to the temperature of the air: A.D. 1914.

(4) Subject to the provisions of the immediately preceding subsection the testing shall be made in the mode and under the conditions for the time being prescribed by the metropolitan gas referees for testing the total heat value of gas so far as such mode and conditions are applicable:

(5) The result obtained by means of such testing shall be expressed in terms of British thermal units and shall be corrected to a temperature of sixty degrees Fahrenheit and a pressure balanced by a column of thirty inches of mercury at the same temperature. The corrected result shall be deemed to be the calorific power of the gas ascertained by the testing:

(6) The gas examiner shall forthwith give notice in writing to the Company at their office of any defect of calorific power ascertained by him on any testing made under this section:

(7) In the event of the calorific power being on any testing at the prescribed testing-place ascertained to be below the standard calorific power by more than five per centum a second testing shall be made on the same day at the testing-place but at an interval of not less than one hour from the time of making the first testing and the average of the two testings shall be deemed to be the calorific power of the gas at such testing-place on that day.

65. If on any day the calorific power of the gas supplied by the Company at the prescribed testing-place is below the standard calorific power by more than seven and a half per centum they shall be liable to the following penalties in respect of any deficiency beyond such last-mentioned margin (that is to say):—

Penalties for
deficient
calorific
power.

If the deficiency does not exceed fourteen British thermal units two pounds:

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If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds :

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

Pressure of gas.

66.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service-pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Company shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

67. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific value or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Power to supply gas fittings &c.

68.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings (in this section referred to as "fittings") for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be and all fittings let for hire as aforesaid notwithstanding that they be fixed or fastened to any part of the premises in which they may

be situate or to the soil under any such premises shall at all times continue to be the property of or removable by the Company provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof. A.D. 1914.

69. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company. Gas consumers to give notice to Company before removing.

70. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands. Company to pay interest on money deposited as security for gas.

71. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same. Company may refuse to supply gas in certain cases.

72. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the principal office of the Company or be given personally by the consumer at such office. Notice to discontinue supply of gas.

73. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive from the Company a supply of gas where consumer has separate supply.

A.D. 1914. of gas for any premises for which he has at the same time a supply of gas from an installation other than that of the Company or a supply of electricity unless he shall have agreed to pay to the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and will cover charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

As to construction and placing of pipes &c. between mains and meters.

74. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between

nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

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- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

75. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Power to require use of anti-fluctuators for gas engines.

76. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power to enter premises and remove fittings.

A.D. 1914.

Period of
error in
defective
meters.

77. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Company
may enter
into con-
tracts for
supply of
gas.

78. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or service pipes or to interfere with any street beyond the limits of supply.

MISCELLANEOUS.

Dwelling-
houses for
Company's
employees
offices show-
rooms &c.

79. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Power to
take licences
for use of
patents.

80. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture utilisation or distribution of gas or materials employed in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Power for
directors to
determine
remuneration
of secretary.

81. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

82. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised in writing by the directors thereof being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

A.D. 1914.
Authenti-
cation and
service of
notices by
Company.

83. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in
case of per-
sons not sui
juris.

84. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

85. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

86. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company

Copy of Act
to be regis-
tered.

A.D. 1914. shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily. There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

Saving as to
general
Acts.

87. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Costs of Act.

88. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULE referred to in the foregoing Act.

DESCRIPTION OF GAS LANDS.

A piece of land belonging to the Limited Company and on which the gasworks of the Limited Company are erected containing by admeasurement 2,420 square yards or thereabouts situate in the parish of Whitwell in the rural district of Clown in the county of Derby and bounded on or towards the north-east by Southfield Lane on or towards the south-east by the Mansfield and Worksop Branch of the Midland Railway and on or towards the south-west and north-west by land belonging or reputed to belong to His Grace the Duke of Portland and in the occupation of Henry Cantrill.

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